
Journal

1981 PLD 232

Court

LAHORE HIGH COURT

Date

1981-01-31

Appeal No.

WRIT PETITION NO. 10552 OF 1980

Judge

ZAKI UDDIN PAL

Parties

GHULAM SABIR (PETITIONER) VERSUS CHAIRMAN, UNION COMMITTEE, WORD NO. 27, SAMANABAD, LAHORE AND 3 OTHERS (RESPONDENTS)

Lawyers

BASHIR AHMAD FOR PETITIONER. LNAYAT ULLAH FOR RESPONDENT NO. 4.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 5 AND 13 MUSLIM FAMILY LAWS ORDINANCE (VIII OF 1961) - SS. 6(5) AND 9 CONCILIATION COURTS ORDINANCE (XLV OF 1961)

Judgment

Judgment

The facts of the case are that respondent No. 4 was married to the petitioner on 22-9-1979. So far as the relevant entry in Nikahnama is concerned the dower amount was fixed as Rs. 50,000. However, according to the petitioner the original amount fixed was Rs. 10,000 but it was manipulated to be Rs. 50,000 by respondent No. 4 without his acknowledge and consent. The relations between the petitioner and respondent No. 4 became strained right from the beginning and ultimately divorce was effected soon after on 15-10-1979 hardly after three weeks of the marriage.

2. According to respondent No. 4 marriage was never dissolved in a lawful manner. According to the relevant documents filed in this behalf by the petitioner as Annexures 'A' and 'B', the divorce deed and declaration deed, both are forged. The petitioner after divorce contracted another marriage as shown by Annexure 'C' with Mst. Naheed which also did not prove to be successful. I need not dilate upon this aspect of the matter, particularly, with regard to validity or otherwise of the divorce as alleged by respondent No. 4 as it is not relevant for the decision of the present case.

3. It is admitted that respondent No. 4 after dissolution of the marriage applied to respondent No. 1 the Chairman, Union Committee, Ward No. 27, Samanabad, Lahore for recovery of the dower amount of Rs. 50,000 who passed an ex parte decree for the payment of the amount against the petitioner. He submitted the relevant papers of the case to respondent No. 2, the Collector, District Lahore, for the purpose of recovering the amount as arrears of land revenue. The Collector in turn entrusted the matter to the Assistant Collector, Lahore, for the aforesaid purpose. All these facts are borne out from Annexure 'D' which contains different orders passed by various authorities at different stages. It is interesting to notice that Assistant Collector, Lahore brought to the notice of the Collector by his note dated 10-5-1980 that since the Chairman, Union Committee had no jurisdiction to decide the matter with regard to dower amount under section 9 of Muslim Family Laws Ordinance, 1961, therefore, his ex parte order passed against the petitioner for payment of Rs. 50,000 as prompt dower cannot be executed by the revenue authorities. The Collector, however, did not agree with the aforesaid note and directed the Assistant Collector to realise the amount in question as arrears of land revenue by his order dated 1-6-1980. The validity of the aforesaid order has been challenged through this petition.

4. The main question involved in this case is, whether the Chairman of Union Council or Committee as the case may be, has powers to decide the matter with regard to dower amount, and whether the revenue authorities can execute such order or hold proceedings independently for recovery of the dower amount as arrears of land revenue under section 6(5) of Muslim Family Laws Ordinance, 1961. The provision as contained in subsection (5) of section 6 lays down that if person contracts another marriage without the permission of the Arbitration Council then he shall be liable to pay immediately the entire amount of dower whether prompt or deferred due to the existing wife or wives which amount if not so paid shall be recoverable as arrears of land revenue. The provision as contained in section 9 of Muslim Family Laws Ordinance, 1961 which has been relied upon by the Chairman, Union Committee for having jurisdiction to decide the matter with regard to the dower amount provides that if any husband fails to maintain his wife adequately, or where there are more wives than one, fails to maintain them equitably, the wife or all or any of the wives may in addition to seeking any other legal remedy available apply to the Chairman who shall constitute an Arbitration Council to determine the matter, and the Arbitration Council may issue a certificate specifying the amount which shall be paid as maintenance by the

husband. Subsection (2) of section 9 provides for revision of the order passed by the Arbitration Council by the Collector.

5. It has been argued by the learned counsel for respondent No. 4 that apart from the jurisdiction vesting in the Chairman of the Union Committee under section 9 the Collector has power under, section 6(5) of the Ordinance to straightaway proceed against the husband for recovery of amount of dower as arrears of land revenue if the said amount has not been paid. The learned counsel relies upon the bare language as used in the aforesaid provision. According to him the entire amount of dower whether prompt or deferred is liable to be paid by the husband in case he contracts another marriage without the permission of the Arbitration Council and if not paid then it will be recoverable as arrears of land revenue. Since it is the revenue authorities which can recover such amount in that matter, therefore, the impugned order has been rightly passed.

6. It may be stated in the first instance that a Union Council or Union Committee has no power whatsoever under the Muslim Family Laws Ordinance, 1961 to decide the matter with regard to dower amount. -According! to section 5 of the Ordinance of 1961, every marriage has to be registered in accordance with the provisions of the Ordinance. A Union Council shall grant licence to Nikah Registrars for that purpose.

Section 6 of the Ordinance deals with polygamy providing that a person who wants to contract second marriage shall do so after obtaining necessary permission from the Arbitration Council. Section 7 of the Ordinance deals with talaq providing that any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of talaq in any form whatsoever give the Chairman notice in writing of his having done so, and shall supply a copy thereof to the wife. Section 8 deals with the dissolution of marriage otherwise than by talaq. However, even in this way provision of section 7 shall *mutatis mutandis* and so far as applicable, apply. Section 9 of the Ordinance deals with the maintenance to be awarded to a wife. If any husband fails to maintain his wife adequately then an application may be filed under the prescribed manner before the Chairman concerned who will constitute an Arbitration Council to determine that matter. Section 10 of the Ordinance deals with dower providing that where no details about the mode of payment of dower are specified in the nikahnama, or the marriage contract, the 'entire amount of the dower shall be presumed to be payable on demand. Nowhere in the aforesaid relevant provisions of the Ordinance a Union Council or Union Committee has been authorised to deal with the matter with regard to dower and as such no Chairman of Union Committee or Union Council as the case may be, is authorised under any provision of Muslim Family Laws Ordinance, 1961 even to entertain an application filed by a wife for the grant of a decree or order for the payment of the dower amount.

7. According to section 5, West Pakistan Family Courts Act, 1964, subject to the provisions of the Muslim Family Laws Ordinance, 1961 and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule. The matters which have been specified in the Schedule relates to Dissolution of marriage, dower, maintenance, restitution of conjugal rights, custody of children, guardianship and jectitation of marriage. It will be seen that since the matter with regard to dower was not within the jurisdiction of any Union Committee or Council to decide according to Muslim Family Laws Ordinance, 1961, therefore, till the enforcement of Family Courts Act, 1964 aggrieved parties used to approach the civil Courts for the redress of their grievance. After the enforcement of aforesaid Act all suits with regard to dower are being filed before the Family Courts established under the Act.

As such the order of the Chairman, Union Committee concerned being without jurisdiction has no bearing whatsoever.

8. The next question which arises for consideration as mentioned above, is whether the Collector or any revenue authority has jurisdiction to straightaway proceed in the matter for the purpose of recovering dower amount if not paid as arrears of land revenue in the case of a person who has contracted second marriage without the permission of the Arbitration Council.

I am afraid no such jurisdiction has been conferred by the aforesaid provisions upon any revenue authorities whatsoever to proceed independently for recovering dower amount as arrears of land revenue in the absence of any order or decree passed by a competent Court or authority. There is no doubt that according to the aforesaid provisions unpaid dower amount in the case of a person who has contracted second marriage without the permission of the Arbitration Council can be realised as arrears of land revenue, but the question would be under whose orders. The provisions of Muslim Family Laws Ordinance, 1961, are to be read in conjunction with the provisions of Family Courts Act, 1964, as provided by section 5 of the Act, The Family Courts established under the Act have exclusive jurisdiction to bear and adjudicate upon certain matters specified in the Schedule subject to the provisions of the Ordinance. It is admitted that under the Act of 1964 it is the Court of Family Judge which has got exclusive jurisdiction to decide the matter with regard to dower. According to section 13 of the Act the Family Court shall pass a decree in such form and manner as may be prescribed and shall enter its particulars in the prescribed register. Subsection (2) of section 13 of the Act provides that if any money is paid or any property is delivered in the presence of the Family Court, in satisfaction of the decree, it shall enter the fact of payment and delivery of the property, as the case may be, in the aforesaid Register. Subsection (3) provides that where a decree relates to the payment of money and the decretal amount is not paid within the time specified by the Court, the same shall, if the Court so directs, be recovered as arrears of land revenue, and on recovery shall be paid to the decree-holder. Subsection (4) provides that the decree shall be - executed by the Court passing it or by such other civil Court as the District Judge may, by special or general order, direct. It means that a decree passed in a dower matter by a Family Court shall be executed by the Court which has passed the same or by such other civil Court as the District Judge may by his order direct. Further any amount not paid within the specified period as fixed by the Family Court the same can be recovered as arrears of land revenue if so directed by the Court and no otherwise. Similar provision exists in many other laws particularly Industrial Relations Ordinance, 1969. Section 51 thereof provides that any money due from an employer under a settlement or under an award or decision of the Arbitrator, Labour Court or Tribunal, may be recovered as arrears of land revenue or as a public demand, if so directed by the Labour Court. It may be noticed that other laws such as Income Tax Act, Customs Act etc. make provisions for such purposes. It means that unpaid amount in the cases under the aforesaid laws cannot be realised as arrears of land revenue in the absence of a valid order passed by a competent authority or Court directing the realisation of such amount as arrears of land revenue. The provision as contained in subsection (5) of section 6 of the Ordinance, 1961 cannot be read in isolation of the relevant provisions as contained in Family Courts Act, 1964. I am afraid no person can straightaway approach the Collector or any other revenue authority on the basis of Nikahnama or any other agreement between the parties that since husband has contracted second marriage without the permission of the Arbitration Council, therefore, unpaid amount of dower may be realised as arrears of land revenue. The services of the Collector or any other revenue authority may be utilised for the purpose of realisation of unpaid amount in such manner as directed by Family Court under the relevant provisions of Act, 1964. Unless a matter is properly and legally adjudicated upon as to how much amount is due to the wife whether the agreement or Nikahnama on the basis of which said amount is claimed is valid and decree is passed by a competent Court, no proceedings under subsection (5) of section 6 can be held. Further such matters cannot be decided by revenue authority as no jurisdiction has been conferred upon that by any provision of Muslim Family Laws Ordinance. It may be decided by a Family Court as envisaged by Family Courts Act, 1964.

9. It is to be noticed that if the contention raised by the learned counsel for respondent No. 4 is accepted that every person can straightway approach the Collector or any revenue authority for recovery of unpaid amount of dower as arrears of land revenue under subsection (5) of section 6 then such proceedings will lead to chaos and confusion in the absence of any valid order or decree having been passed by a competent Court as envisaged by Family Courts Act, 1964.

10. The Collector, District Lahore, by his order dated 31-5-1980, has held that the Chairman, Arbitration Council has jurisdiction to award decree under subsection (5) of section 6 of the Muslim Family Laws Ordinance, 1961 and since unpaid amount of such decree can be realised as arrears of land revenue, therefore, the Assistant Collector concerned can proceed with the matter. I fail to understand as to wherefrom such inference has been drawn by the learned Collector that the Chairman, Arbitration Council has jurisdiction to pass an order with regard to the dower amount. The aforesaid order has been passed in disregard of the relevant provisions of law discussed above. The Chairman, Arbitration Council illegally assumed jurisdiction in passing an ex parte order against the petitioner for payment of dower amount. The Collector, Lahore in turn illegally and without jurisdiction held that the aforesaid amount could be realised as arrears of land revenue in the absence of any valid order or decree passed by a competent Court. Since the Chairman of the Arbitration Council was not competent even to entertain any application filed by respondent No. 4 for the recovery of amount of dower under Muslim Family Laws Ordinance, 1961, therefore, his order passed in that behalf cannot be sustained in law and the same is hereby set aside. The order of the Collector based upon that illegal and without A jurisdiction ex parte order as discussed above also cannot be sustained. He has no jurisdiction to proceed for the recovery of such amount as arrears of land revenue independently in the absence of any valid order or decree passed by a competent Court as envisaged by Family Courts Act of 1964. His order, therefore, being illegal and without jurisdiction is hereby set aside. The writ petition stands accepted with costs.

S. Q. Petition accepted.

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